

disbursements, including amounts sent to Bay Area Legal Aid as *cy pres* recipient, as found by the court.

5. No appearance is required at the hearing on September 2, 2026.

6. 9:00 AM CASE NUMBER: C23-00664

CASE NAME: KAREN LARKIN VS. BARBARA SCHURHOFF

HEARING IN RE: MOTION (EX PARTE TO CONTINUE THE TRIAL AND RELATED DATES) FILED ON 8/19/26 BY BARBARA SCHURHOF

FILED BY:

TENTATIVE RULING:

Summary

Before the Court is Defendant Barbara Schurhoff (Deceased) Motion to Continue the Trial Date currently set for November 2, 2026, along with related discovery and expert deadlines for six (6) months. Defendant requests a continuance in order to conduct Independent Medical Examinations on vascular and orthopedic issues. As set forth below, this motion is **denied**.

Background

Plaintiff Karen Larkin ("Plaintiff") initiated this action and seeks \$3.3 million in damages against Defendant Barbara Schurhoff ("Defendant") for alleged injuries sustained in an April 1, 2021 incident. Plaintiff was allegedly struck by a golf cart driven by Defendant, who is now deceased. The trial in this matter is currently set for November 2, 2026. The settlement conference is set for August 28, 2026. This is Defendant's first request for a continuance.

Defendant claims that Plaintiff has placed both orthopedic conditions (crush injuries, contusions, altered gait, sciatica, neck pain, upper-extremity symptoms) and vascular conditions (bilateral venous insufficiency, sclerotherapy) at issue in this action. Orthopedics and vascular medicine are distinct medical specialties requiring separate expertise. Plaintiff stipulated to a vascular Independent Medical Examination ("IME"), which is scheduled for August 27, 2026.

However, Defendant claims that Plaintiff refused to stipulate to an orthopedic IME, necessitating Defendant's Motion to Compel Plaintiff to Submit to a Second IME ("MTC"). That motion is currently scheduled for January 20, 2027, well after the November 2, 2026 trial date. The Civil Law Division of this Court manages over 25,000 active cases. Department 16, alone, manages 2,700 active cases, including class actions, complex litigation, construction defect and PAGA matters. There are simply not enough hearing dates available to accommodate a hearing on the regular calendar until January, 2027.

Defendant claims to have exercised due diligence in attempting to obtain the orthopedic IME:

- On May 20, 2026, Defendant requested Plaintiff's stipulation to the orthopedic IME;
- On July 1, 2026, Defendant served a formal Demand for Second IME;
- On July 8, 2026, the parties met and conferred regarding the examination;
- On August 4, 2026, Defendant filed the MTC;
- On August 10, 2026, Defendant requested Plaintiff's stipulation to continue the trial;
- On August 12, 2026, Plaintiff refused to stipulate to the continuance.

Defendant claims that she accommodated Plaintiff's restrictions regarding IME scheduling, including retaining new experts in Northern California when Plaintiff declined to travel to Southern California and working around Plaintiff's refusal to attend examinations before noon. Defendant Barbara Schurhoff is deceased and unavailable to testify or participate in the defense, making objective medical evidence particularly critical to a fair adjudication.

Even if the discovery motion on calendar for January 20, 2027 were advanced and granted, Defendant claims to require additional time to: (a) conduct the orthopedic IME; (b) obtain expert reports; (c) allow expert review and cross-analysis between vascular and orthopedic findings; (d) conduct any necessary follow-up discovery; and (e) prepare for trial.

Plaintiff Karen Larkin opposes the continuance, arguing that defendant's claimed need for additional discovery is entirely self-created through a lack of diligence spanning over a year. Current defense counsel substituted into the case on July 23, 2025. By August 6, 2025, 363 days before filing their motion to compel a second examination, plaintiff's counsel explicitly informed defendant both that plaintiff would not agree to a second physical examination and that prior counsel had already been advised of this position. Despite threatening in May 2026 to file a motion to compel by May 27, 2026, defendant waited until August 4, 2026 to file the motion. Plaintiff contends that had defendant acted diligently in August 2025 when first advised of plaintiff's position, any dispute over the second examination could have been resolved well before the trial date, rendering the continuance unnecessary.

Plaintiff also challenges the substantive basis for the second examination itself. Under CCP § 2032.220, defendant is entitled to one physical examination without leave of court, which they have already demanded and scheduled with vascular surgeon Dr. Kasirajan for August 27, 2026. Plaintiff argues that any licensed physician, including defendant's retained vascular surgeon, is qualified to conduct a complete physical examination of the entire body, even if that physician may only be qualified to render expert opinions within their specialty. Defendant has already retained both a vascular surgeon and an orthopedic surgeon (Dr. Grossman) as consulting experts who provided record review opinions; the fact that defendant wishes to present testimony from multiple specialists does not entitle them to multiple physical examinations. CCP § 2032.320 requires good cause for additional examinations, which defendant cannot demonstrate when their own selected examiner is fully capable of conducting a complete physical exam.

Plaintiff further alleges that defendant is actively manipulating the discovery process. After defendant's originally scheduled July 9, 2026 examination was cancelled by Dr. Kasirajan for personal reasons and rescheduled to August 27, 2026, defendant served an "Amended" demand on August 21, 2026—only six days before the examination—purporting to limit the scope to vascular issues only. This violates CCP § 2032.320(d), which requires at least 30 days' notice for physical examination demands. Plaintiff characterizes this as a transparent attempt to artificially manufacture the need for a second examination by inappropriately restricting the scope of the first examination, which was originally noticed to encompass all body parts related to plaintiff's complaints.

Finally, plaintiff highlights significant prejudice from the requested continuance. The case was filed in March 2023 and has been at issue since July 2023. The five-year statutory limitation under CCP § 583.310 will expire in March 2028, and granting the continuance would push the trial date close to that deadline. Plaintiff, now 78 years old, has been living with her injuries for over five years without

compensation, depleting her retirement savings to address hardships caused by defendant's negligence. The opposition argues that defendant's delays were not due to any inability to act despite diligent efforts, but rather constitute a repetitive lack of diligence that should not be excused by granting a continuance.

Analysis

The Court starts with the following premise: "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain. (CRC Rule 3.1332(a)) A trial continuance should be granted upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. (*Board of Medical Quality Insurance v. Gherardine* (1979) 21 Cal.App.3d 669, 681.) The decision whether to grant a motion for continuance is within the trial court's discretion. (*Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603; *Jurado v. Toys "R" Us* (1993) 12 Cal.App.4th 1615, 1617.) However, "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.) "Such decisions must be made in an atmosphere of substantial justice." (Id.)

California Rules of Court, Rule 3.1332(c) permits a continuance upon an affirmative showing of good cause, including a party's "excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts" (Rule 3.1332(c)(6)) and "a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial" (Rule 3.1332(c)(7)). Here, Defendant has demonstrated good cause for a continuance under Rule 3.1332(c)(6) and (c)(7). Defendant has satisfied the requirements of Code of Civil Procedure section 595.4 by establishing both the materiality of the evidence and due diligence in attempting to obtain it.

Furthermore, the factors set forth in Rule 3.1332(d) weigh in favor of granting the continuance, particularly: the absence of any prior continuance; the lack of alternative means to obtain the evidence; the irreparable prejudice Defendant would suffer if forced to trial without essential medical discovery; and the interests of justice. The Court finds that denial of the continuance would have the practical effect of denying Defendant a fair hearing in violation of due process principles. See *Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.)

Defendant Has Not Demonstrated Good Cause Under Rule 3.1332(c)(6)

No "Excused Inability." Here, Defendant has not demonstrated an "excused inability" to obtain the discovery it seeks. Defendant's inability to proceed without a second physical examination appears to be self-created. Current defense counsel was informed on August 6, 2025, 363 days before filing the motion to compel a second examination, that Plaintiff would not stipulate to a second examination. Defendant thereafter indicated that she would file a motion to compel by May 27, 2026, but failed to do so until August 4, 2026. Had Defendant acted diligently in August 2025, or even May 2026, any dispute regarding the second examination could have been resolved well before the November 2, 2026 trial date.

No "Diligent Efforts." Defendant has not satisfied the requirements of Code of Civil Procedure section 595.4. Defendant's nearly year-long delay in seeking relief, followed by its failure to meet its own deadline, demonstrates a lack of due diligence, not diligent efforts to obtain essential evidence. A party cannot create its own emergency through inaction and then claim "diligent efforts" to justify a continuance.

The Evidence Is Not "Essential." Under Code of Civil Procedure section 2032.220, Defendant is entitled to one physical examination without leave of court. Defendant has already demanded and scheduled such an examination with vascular surgeon Dr. Karthikeshwar Kasirajan for August 27, 2026. Any licensed physician, including Defendant's retained vascular surgeon, is qualified to conduct a complete physical examination of the entire body. That the examining physician may only be qualified to render expert opinions within his specialty does not render him unqualified to conduct a complete physical examination. Defendant's claim that a second examination is "essential" is undermined by the fact that it has not yet conducted its first authorized examination, and that any licensed physician can examine all body parts, even if only qualified to opine on certain conditions.

Defendant Has Not Demonstrated Good Cause Under Rule 3.1332(c)(7)

There has been no "significant, unanticipated change in the status of the case." The only "change" is Defendant's claim that requires a second physical examination. This Court finds that Defendant's failure to act diligently over the course of more than a year does not constitute an "unanticipated change" warranting a continuance.

The factors set forth in Rule 3.1332(d) weigh heavily in favor of denying the continuance

Alternative Means: Defendant has adequate alternative means to obtain the discovery it needs. Defendant may conduct its one authorized physical examination scheduled for August 27, 2026. Defendant has also retained multiple medical consultants who have provided record review opinions. The Court finds that Defendant's retained vascular surgeon is qualified to conduct a complete physical examination of Plaintiff, and that Defendant's claimed need for a second examination by an orthopedic surgeon is not justified where any licensed physician may conduct the one authorized examination.

Prejudice to Plaintiff.

The Court finds that Plaintiff would suffer prejudice if the continuance were granted. This action was filed in March 2023 and has been at issue since July 2023. Plaintiff is 78 years old and has been living with her injuries for over five years without compensation. Although a preference motion has not been filed, the Court finds that the prejudice to Plaintiff from further delay substantially outweighs any claimed prejudice to Defendant.

Interests of Justice

The Court is concerned about Defendant's conduct in this matter. On August 21, 2026, just six days before the scheduled examination, Defendant served an "Amended" demand purporting to limit the scope of the examination to vascular issues only. This violates Code of Civil Procedure section 2032.320(d), which requires at least 30 days' notice for physical examination demands. The Court finds that this appears to be an attempt to manipulate the discovery process to manufacture a need for a second examination. The interests of justice do not favor rewarding such conduct with a continuance.

Due Process Considerations

While "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error" (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395), this Court finds that denying the continuance will not deny Defendant a fair hearing. Defendant has already scheduled its authorized physical examination and has retained multiple experts who can review records and render opinions. Defendant's claimed need for a continuance stems from its own

lack of diligence and its attempt to obtain multiple physical examinations to which it is not entitled. Substantial justice favors denying the motion.

The Court finds that Defendant has not demonstrated good cause for a continuance under California Rules of Court, Rule 3.1332(c)(6) or (c)(7). Defendant's claimed inability to obtain essential discovery was caused by its own lack of diligence, not circumstances beyond its control. The factors set forth in Rule 3.1332(d) weigh against granting the continuance, particularly the significant prejudice to Plaintiff, the elderly status of Plaintiff, the proximity to the five-year statutory deadline, and Defendant's apparent attempt to manipulate the discovery process. The Court further finds that denial of the continuance will not have the practical effect of denying Defendant a fair hearing.

Ruling

1. Defendant's Motion to Continue Trial is **denied**. The trial shall remain set for November 2, 2026, at 9:00 a.m. in Department 16.
2. Defendant's physical examination of Plaintiff should have already proceeded as scheduled on August 27, 2026, with Dr. Karthikeshwar Kasirajan. The scope of that examination shall be "those parts of the body which may be related to the Examinee's complaints relative to the within action," as originally noticed. Defendant's "Amended" demand served August 21, 2026, is deemed untimely and ineffective.
3. Defendant's Motion to Compel a Second Physical Examination, currently set for hearing on January 20, 2027, is **vacated** as moot in light of this ruling.
4. Each party shall bear their own costs and fees incurred in connection with this motion.
5. Plaintiff shall prepare a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) days from the date of the hearing.

7. 9:00 AM CASE NUMBER: C23-00838

CASE NAME: YOLANDA PAYNE VS. EKSIO BIONICS, INC.

***HEARING ON MOTION IN RE: TAX COSTS**

FILED BY: PAYNE, YOLANDA

TENTATIVE RULING:

Summary

The Court, having considered Plaintiff Yolanda Payne's Motion to Tax Costs, Defendant Eksio Bionics, Inc.'s Opposition thereto, and all papers and arguments presented, hereby **denies** the motion for the reasons set forth below.

Background

Plaintiff's Complaint alleged seven causes of action, of which four were purely non-FEHA claims: (1) retaliation under Labor Code § 1102.5; (2) retaliation under Labor Code § 6310; (3) retaliation under Labor Code §§ 233 and 246.5; and (4) wrongful termination in violation of public policy. These non-FEHA claims arose from the same nucleus of operative facts as the FEHA claims—namely, allegations that Defendant retaliated against Plaintiff for reporting safety concerns.